

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00062-CR

CHARLES GUY SCOTT, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 435th District Court
Montgomery County, Texas
Trial Court No. 24-07-11546

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice van Cleef

MEMORANDUM OPINION

A Montgomery County[1] jury convicted Charles Guy Scott of continuous sexual abuse of a child younger than fourteen years of age, a first-degree felony, and the trial court sentenced him to sixty years' imprisonment. *See* TEX. PENAL CODE ANN. § 21.02. Scott appeals.

Scott's appellate counsel filed a motion to withdraw as Scott's counsel on appeal, stating that he fully examined the record and reviewed the relevant law, but he found no meritorious issues for appeal. Scott's appellate counsel also filed a brief in support of his motion to withdraw. In his *Anders*[2] brief, appellate counsel set out the procedural history of the case and provided a review of Scott's plea of not guilty to the State's allegations, the effectiveness of trial counsel, and the legality of the sentence imposed, with citations to the record and applicable authority. Appellate counsel concluded there was no non-frivolous argument to be raised with respect to any of these issues.

Appellate counsel sent a letter to Scott providing him with a copy of the brief, informing Scott of his rights to review the record and file a brief or response on his own behalf, informing him of his right to appeal, and explaining the meaning and effect of an *Anders* brief. In his motion to withdraw, appellate counsel stated that he had delivered a copy of the motion to Scott. Appellate counsel's letter also informed Scott of his right to review the appellate record and provided Scott with a request for the purpose of obtaining a copy of the record.

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[1]This appeal was transferred to this Court from the Ninth Court of Appeals pursuant to a Texas Supreme Court docket equalization order. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.). Accordingly, we apply the precedent of the Ninth Court of Appeals in deciding this case to the extent that it conflicts with our own. *See* TEX. R. APP. P. 41.3.

[2]*See Anders v. California*, 386 U.S. 738 (1967).

On July 6, 2026, this Court informed Scott that his pro se response was due on or before August 5. Scott's pro se brief was received October 19. The State waived the filing of a brief.

Appellate counsel's actions comply with an appointed counsel's responsibilities when filing an *Anders* brief and a motion to withdraw in accordance with *Kelly v. State*. *See Kelly v. State*, 436 S.W.3d 313, 318–20 (Tex. Crim. App. 2014). Appellate counsel's professional evaluation of the record demonstrates why there are no arguable grounds to be raised on appeal and meets the requirements of *Anders*. *See Anders*, 386 U.S. at 743–44; *Kelly*, 436 S.W.3d at 318–20.

After our independent review of the entire appellate record, we have determined that "there are no non-frivolous grounds for appeal." *Kelly*, 436 S.W.3d at 318 n.16. In the *Anders* context, once we determine that the appeal is without merit, we must affirm the trial court's judgment. *See Bledsoe v. State*, 178 S.W.3d 824, 826–27 (Tex. Crim. App. 2005). Thus, we affirm the trial court's judgment.[3]

Charles van Cleef
Justice

Date Submitted: September 8, 2026
Date Decided: November 13, 2026

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[3]Since we agree that this case presents no non-frivolous grounds for appeal, we also, in accordance with *Anders*, grant appellate counsel's request to withdraw from further representation of Appellant in this case. *See Anders*, 386 U.S. at 744. No substitute counsel will be appointed. Should Appellant desire to seek further review of this case by the Texas Court of Criminal Appeals, Appellant must either retain an attorney to file a petition for discretionary review or file a pro se petition for discretionary review. Any petition for discretionary review (1) must be filed within thirty days from either the date of this opinion or the date on which the last timely motion for rehearing was overruled by this Court, *see* TEX. R. APP. P. 68.2, (2) must be filed with the clerk of the Texas Court of Criminal Appeals, *see* TEX. R. APP. P. 68.3, and (3) should comply with the requirements of Rule 68.4 of the Texas Rules of Appellate Procedure, *see* TEX. R. APP. P. 68.4.